SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 7183 of 2021 (YEAR: 2006)

CORAM: Y.K. SABHARWAL, ARUN KUMAR, G.P. MATHUR, C.K. THAKKER, P.K. BALASUBRAMANYAN

State of Karnataka
... Appellant(s) / Petitioner(s)
Versus
Umadevi (Re-affirmed)
... Respondent(s)

Acts Referred:	Constitution of India
Sections:	Article 14, Article 16, Article 309

JUDICIAL HEADNOTE & SUMMARY

Constitution bench held that courts cannot direct absorption or regularization of temporary or ad-hoc public workers appointed without sanctioned recruitment process.

RATIO DECIDENDI

The Court held that: Constitution bench held that courts cannot direct absorption or regularization of temporary or ad-hoc public workers appointed without sanctioned recruitment process. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in State of Karnataka v. Umadevi (Re-affirmed) (Civil Appeal No. 7183 of 2021) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Constitution of India, particularly Article 14, Article 16, Article 309. Constitution bench held that courts cannot direct absorption or regularization of temporary or ad-hoc public workers appointed without sanctioned recruitment process.

OPERATIVE ORDER

ORDER: Decided